EXHIBIT B

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF NEW YORK: TRIAL TERM PART 54

- X
DR. PETER DASZAK, PH.D.,

Plaintiff,

- against -

ECOHEALTH ALLIANCE, INC., STEVEN SHAPIRO, INDIVIDUALLY AND AS CHAIRMAN OF THE BOARD OF DIRECTORS OF ECOHEALTH ALLIANCE, INC., ANDJULIET AGRANOFF, DR. FREDERICK BAUM, III, JOE CURRY, KAREN DENTON, RALPH E. GOMORY, NANCYE GREEN, NANCY GRIFFIN, ROBERT HOGUET, CHARLES HIRSCHLER, GEOFFREY POTTER, ELLEN SHEDLARZ, LISA SILVERSHEIN, JARRET STEPHENS, PAMELA M. THYE, CARLOTA VOLLHARDT, STEVEN WILS, AND FR. LILIAN WU,

Defendants.
- X
Index No. 164611/2025

July 28, 2026
Microsoft Teams Proceeding

B E F O R E: THE HONORABLE JENNIFER G. SCHECTER, Justice

A P P E A R A N C E S:

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ALSO PRESENT: DR. PETER DASZAK, Ph.D.

Terry-Ann Volberg, CSR, CRR
Official Court Reporter

THE COURT: Good afternoon, everyone. I hope you are all doing well. I am sorry to keep you waiting. Let's get started.

I have in front of me a motion to dismiss the complaint, and every inference is taken in favor of the plaintiff on this motion, and it is a very heavy burden for dismissal. With that, Mr. Gasperetti, let's look at the record here and the causes of action.

So according to the complaint, in 2024 the government notified EHA, the defendant, that it was going to suspend and debar EHA and Daszak, the plaintiff, from receiving future grants. That's at paragraph 38. The complaint acknowledges -- I don't know what the background -- maybe I hear typing, let's see -- so the complaint says that that had devastating consequences in paragraph 39. And then the complaint sets forth that in late January 2024 that both Daszak and EHA were barred for five years, and then Daszak was directed to terminate many employees. And the complaint then continues to say that on January 6, 2025, Daszak was ambushed, he was terminated, and that there was no identification of the alleged cause that inspired them to terminate him, that's at paragraph 50, and that after 24 years of employment he was terminated both as an employee and as a director, and that is in paragraphs 50 and 51.

So there are three causes of action in the complaint, and the first one is for violation of New York State Human Rights Law, and according to the complaint, the complaint sets forth that this was age discrimination, and I don't believe at the end of the day that the plaintiff is arguing that he was wrongfully terminated, that that was discriminatory, but rather that unlike the other employees who were younger who were terminated, they got severance, and he did not get severance. And the plaintiff alleges that he is 59-years-old at paragraph 56, and that no reason was provided for his termination, and that he was dismissed and terminated due to his age, that's at paragraph 61, but, again, and I'll check with you, Mr. Gasperetti, soon, but I think that the complaint really focuses on the lack of severance.

So the allegations are that plaintiff -- is age discrimination under state law is cause of action number one. Cause of action number two is violation of the City Human Rights Law, and it's the same underlying facts. And then the third cause of action is for breach of contract, and, again, I think this is predicated on, well, at the end of the day on the employee handbook which is submitted twice in the record, at one point it's along with an affirmation from Mr. Daszak, that's the copy that I'll focus on, but the handbook itself sets forth that it is not a contract and is

not intended to create obligations of any kind, that's a quote from the handbook, I believe it's at page three, and that it is all discretionary, and that the company can deviate without notice at any time. And then at the end, in fact, of the handbook there's a required receipt and acknowledgment where employees have to sign that they understand that the handbook is not a contract, express or implied, between the company and the employee and should not be viewed as such. It continues on that the employment is at will, I believe it says that, give me one moment, yeah, right above that, "I understand and agree that my employment is at will which means I could be terminated at any time with or without cause."

But the section of the handbook that the plaintiff relies on, I believe, is 25.7, that is at page 38, and the handbook itself though at that section says that only employees who are laid off for nonperformance-related reasons would receive severance. So even if it could be deemed a contract, I don't believe it can because the documentary evidence sets forth very clearly that the handbook should not be construed as a contract, and state law is too that, you know, the handbook is not generally intended to create or shouldn't be likely converted into an employment agreement. That's the Lobosco case at 96 N.Y.2d 312, page 317, it's a New York State Court of Appeals case.

So I don't see how the handbook would create a contract, but even if it could, the severance section says that employees who are laid off for nonperformance-related reasons will receive severance, and here Dr. Daszak was ultimately debarred, and the complaint said that that has a devastating consequence on the company so I don't know how that wouldn't be performance based. Those are the contract claims.

Then there's also the discrimination claims, and there too, I just don't see, I will ask you in a moment, Mr. Gasperetti, from what facts I could ever deduce or infer, and I am taking all facts in favor of the plaintiff to be sure, but the only real anything here about age is simply the allegation that plaintiff is 59 which is contained in the complaint, but I just don't see any facts from which I could infer that there's any discrimination here, any allegations that age was a but-for, was a but-for cause even of denial of severance, like what could lead to the inference that age had anything to do whatsoever with the determination.

So I'll turn to you, Mr. Gasperetti, tell me here why shouldn't I dismiss all of the causes of action, the two for age discrimination under the City and State Human Rights Laws for failure to plead any facts that are consistent with even an inference of age discrimination and the breach of

contract because there is no contract that would support at the end of the day a mandate to pay Dr. Daszak severance.

Now, please, unmute. I'm happy to hear from you.

MR. GASPERETTI: Thank you, your Honor.

Section 25.7 of the handbook which the Court correctly refers provides that "In the event of a restructuring or loss of funding the employee will receive up to two weeks of severance pay." That's Section 25.7.

Dr. Daszak laid off many, many people.

THE COURT: One moment. Let's take a look.

Where does it say in 25.7, I'm looking, it says, "In the event an EcoHealth Alliance employee is laid off for nonperformance reasons, for example, due to a restructuring or loss of funding, the employee will receive up to two weeks of severance pay for each year of service."

First of all, also, it says, I didn't include this, but "provided the employee signs a severance agreement and release drafted by and satisfactory to the company, the severance pay may be paid out as salary," and it continues on. So I don't know if they offered him, quite frankly, the severance agreement and release. I know that nothing was signed, but I don't know that they offered it to him.

So I'm going to focus on the beginning part of 25.7 which is laid off for nonperformance-related reasons. I mean, the fact that he was debarred, I think that's the

correct term, why wouldn't that be a performance-based reason?

MR. GASPERETTI: Because, Judge, most respectfully, it resulted in a loss of funding which is precisely contemplated by the severance provision, and that's all he seeks here. He is not challenging the employee at will doctrine, he is seeking severance. And all of the folks he laid off were younger than him, all of them received severance except for Dr. Daszak who was the eldest and most qualified person.

THE COURT: Were they debarred?

MR. GASPERETTI: They were not, not to my knowledge, Judge, only --

THE COURT: Not to mine either, as in it's not pleaded so I'll assume not. I mean, so I understand, first of all, that they are laid off for, I mean, nonperformance reasons, for example, due to loss of funding.

MR. GASPERETTI: That's precisely why he was laid off, Judge. The company couldn't get any more federal money, and he was laid off for loss of funding. As I understand, the transcript -- we have annexed to one of the affidavits a transcript of what I call the ambush meeting of January 6th in which they said, look, we just can't go forward any more, and, in fact, they have gone on to dissolve the corporation as this action is pending. If

that's not a restructuring, I don't know what is.

So there is no reason --

THE COURT: But it's not only due to restructuring or a loss of funding, it's for nonperformance-related reasons. I mean, how would being debarred not be a performance reason?

MR. GASPERETTI: Well, Judge, --

THE COURT: I want to be clear too, I see Dr. Daszak, I see he has his hand up, but he is not, he has counsel, so anything he wants, anything he wants to say he would have to say through you.

MR. GASPERETTI: He has been instructed to not speak.

THE COURT: Very good.

So, Mr. Gasperetti, let me even go back and say how even would this be deemed a contract? If we look at it as the contract claim -- yes.

MR. GASPERETTI: It's a promise made to all of these employees, it's obviously a generous promise, but it's a promise made that in the event the company faces financial difficulties or restructuring then they would receive severance. He is the only one who did not receive severance. All the other people he laid off who were much younger received severance.

That is just -- it offends the conscience.

THE COURT: I understand what you are saying, but, first of all, in terms of when you argue that it's a promise, it explicitly says it is not. The handbook itself says, and I will quote, "It is not a contract and not intended to create obligations of any kind." That's at page, I think it's three, of the handbook. Give me a moment. I think there was one exhibit that it may have been page three of the PDF. Give me a second.

In any event, it is "not a contract, not intended to create obligations of any kind," and then it says it's discretionary, they can deviate without notice at any time. Again, the acknowledgment at the end of the handbook is that every employee recognizes that it is not a contract express or implied, and the law is that handbooks don't create contracts. So how could that be the basis of a contract claim?

MR. GASPERETTI: Your Honor should know in terms of the timeline that he was terminated before he was debarred. We believe discovery will show that he was terminated in cahoots with the government agencies because they were in the process of trying to negotiate a settlement. So they yanked Steptoe & Johnson out from under him as their counsel, his counsel, and they fired him, and that is a violation of Section 25.7, notwithstanding the fact that 25.7 we do not contend is some exception or

carve-out to the employee at will doctrine, it's a simple contractual promise.

They may say many things in the handbook, but this particular provision was abused, and another example of that, Judge, is that he was terminated from the board of trustees without following any of the procedures set forth in the bylaws of the company. Of course now that this motion has been made, this case has been commenced, they have conjured up a series of so-called defenses and causes, but none of that was on the table at the time this happened. In fact, he had not even been debarred, they had not been debarred.

I think discovery will show this was part of a negotiation to curry favor with Senator Paul or whomever they relied upon for support and this notion that this is somehow performance related.

THE COURT: Give me a second. I want to look at paragraph 46.

MR. GASPERETTI: Of the handbook?

THE COURT: No, of the complaint.

Give me a second.

MR. GASPERETTI: Yes.

THE COURT: I want to find it, because the complaint says that in or about late January 2024, is that wrong, the government barred both EHA and Dr. Daszak from

receiving --

MR. GASPERETTI: Yes, that's wrong, they were not debarred until late January, I believe it's late January, of 2025.

THE COURT: I want to point out though that that's the complaint. So if it's a mistake, I hear you now, but I want you to know that I got the timeline from plaintiff's complaint. So the complaint --

MR. GASPERETTI: I understand, your Honor.

THE COURT: Okay. Even if that's true that he was not debarred until later, but I want you to be mindful of where I got it from. It doesn't change a few things. It doesn't change that the handbook is definitively not a contract, and also what the board did to him in terms of the surprise. I mean, whether it complies with the bylaws, whether it doesn't comply with the bylaws, I don't see that as related to his severance, but the claim here is age discrimination in paragraphs one and two, and there are zero facts here that support that he was treated differently because of his age as opposed to anything else. The only allegation in the complaint is that plaintiff is 59, so that's age-related, but there's no statement they made ever, there's no -- like zero from which to infer that they terminated him based or refused severance, either one, with his age being the reason.

MR. GASPERETTI: Your Honor, on this motion -- first of all, the motion is in my opinion, my humble opinion, premature, no discovery has taken place.

Second of all, on this motion we have introduced an affidavit from him in which he says that he was asked whether he was planning to retire, and that was during 2024. So clearly the notion -- that to me impels the inference that this highly paid guy who is older and who is caught in the crosshairs of the government, but not yet debarred, is treated differently from the other people who were let go in the restructuring. I think that's an invidious inference.

I think discovery will show precisely what took place. We have not had the benefit of any discovery.

THE COURT: Right. I mean, before you get discovery you have to have sufficient allegations, otherwise, it's what we know as a fishing expedition as in looking for allegations that you can put in a complaint to go forward.

I hear about a government conspiracy, and a fall person, like all of these things, but that isn't aged-based discrimination. Again, the only thing I see in the complaint is that plaintiff is 59, and all the facts as alleged are that he was debarred whenever that happened, but that he was personally debarred, and there is not even, there isn't a contractual right to severance, but I don't

see -- I appreciate that less experienced employees did, in fact, receive severance, and there are no allegations that they had the level of participation in the entity that was under investigation, and it was a sinking ship according to the complaint. I mean, the plaintiff alleges that he had to fire everybody because things were going very south in terms of the governmental investigation.

So I just, looking at everything with every benefit to the plaintiff, I don't see sufficient allegations that would give rise to even an inference of discrimination. I mean, you can look at the Thomas v. Mintz case, 182 A.D.3d 490, at pages 490 to 499.

Is there anything that you want to add, Mr. Anci?

MR. ANCI: Only, your Honor, that, just to point out, the complaint both specifies, and in the documents that were attached to the motion to dismiss, and made clear in the motion to dismiss, that while Mr. Daszak was terminated on or around January 5th, 2025, the government issued a notice of suspension and proposed debarment on May 15, 2024, and that is what effectively cut off the funding for EcoHealth, that's what ultimately lead to the wind-down as said in the complaint, the lay-off of employees due to that lack of funding.

The only other point right now that I would like to make is even if as counsel stated that there was some

promise made to the employees, there's no promissory or quasi-contract claims pled in the complaint, and even if there were, as your Honor pointed out, the handbook explicitly states there's no promise, no obligations that are created so even quasi-contractual claims wouldn't be able to survive and any attempt to add those now would be futile.

THE COURT: Okay. Yeah.

You know, Mr. Gasperetti, I took a close look at all of the submissions and I just, again, I don't see facts pleaded that could even allow a discrimination claim either under the State or City Human Rights Law to go forward, and the handbook is definitively not able to be the basis of a contract claim. So for those reasons, I am going to grant the defendants' motion to dismiss, and the application to stay discovery, of course, is denied as moot.

(Continued on next page for certification.)

THE COURT: (Continuing) I'm going to order the movant to e-file the transcript of these proceedings within 45 days.

All right. Have a good day, everybody.

MR. ANCI: Thank you, your Honor.

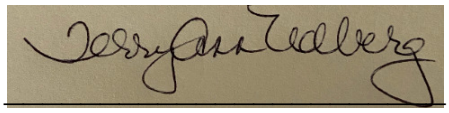
MR. GASPERETTI: Thank you, your Honor.

THE COURT: You're very welcome, sure.

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C E R T I F I C A T E

I, Terry-Ann Volberg, C.S.R., an official court reporter of the State of New York, do hereby certify that the foregoing is a true and accurate transcript of my stenographic notes.



Terry-Ann Volberg, CSR, CRR
Official Court Reporter

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